

Bylaws of The Open Commercial Media Ecosystem (OCME)

Article 1. - Name and Legal Form

An international not-for-profit association is formed, under the name "The Open Commercial Media Ecosystem" (OCME). OCME is operating as an unincorporated membership association.

Article 2. - Mission and Purpose

OCME enables creators, curators and industry professionals to maximize reach, unlock new revenue opportunities, and drive innovation in content commercialization. OCME is the ecosystem for creative and technological leaders eager to impact the digital era.

Article 3. - Principal Office and Operations

Section 1. Principal Office: The principal office of OCME for the transaction of business shall be virtual. OCME may conduct its operations through electronic means, including but not limited to virtual meetings, digital communications, and online collaboration platforms.

Section 2. Other Offices: OCME may also maintain additional virtual or physical offices at such other places as the Board of Directors may from time to time determine necessary or convenient for the conduct of OCME business.

Section 3. Virtual Operations:

3.1. OCME shall maintain a primary web presence at <https://ocmeco.org/> or such other digital location as the Board of Directors may determine.

3.2. All official notices, communications, and records of OCME may be transmitted, stored, and maintained electronically, provided that:

- (a) Reasonable security measures are implemented to protect confidential information;
- (b) Regular backups of essential organizational records are maintained;
- (c) All electronic systems comply with applicable state and federal laws regarding electronic records and signatures.

3.3. Meetings of the Board of Directors, committees, and membership may be conducted through video conferencing, teleconferencing, or other electronic means that allow participants to:

- (a) Hear and be heard by all other participants;
- (b) Participate effectively in all matters before the body;

- (c) Vote on matters submitted for a vote;
- (d) Verify the presence of a quorum.

3.4. Corporate records shall be maintained in electronic format and shall be accessible to authorized persons through secure means as determined by the Board of Directors.

Section 4. Electronic Signatures and Documents.

4.1. Any action requiring a signed document or verification may be conducted through electronic signature in accordance with applicable state and federal laws.

4.2. Electronic records and signatures shall have the same force and effect as physical documents and manual signatures when conducted in compliance with applicable laws and organizational policies.

Section 5. Amendment: This Article may be amended by a majority vote of the Board of Directors, subject to any membership approval requirements contained elsewhere in these bylaws.

Article 4. - Membership

Section 1. Membership Classes and Eligibility.

1.1. OCME maintains four (4) classes of membership: IAC Member, Creator Member, Curator Member, and Industry Member. Members may hold membership in multiple classes simultaneously, provided they meet the eligibility requirements for each respective class.

1.2 OCME may add or delete membership classes as the Board of Directors determines necessary or convenient for the furtherance of OCME business.

1.3. The eligibility requirements for each membership class are as follows:

- a) **IAC Member:** Individuals who serve on OCME's Industry Advisory Council and have been formally appointed to such positions by the sitting IAC.
- b) **Creator Member:** Individuals or entities who actively create, develop, or produce content, products, or services within OCME's field of interest.
- c) **Curator Member:** Individuals or entities who organize, select, maintain, or oversee collections, programs, or initiatives that advance OCME's mission.
- d) **Industry Member:** Organizations, businesses, or professionals who operate within or provide services to OCME's industry or field of interest.

Section 2. Rights and Privileges.

2.1. Members shall have the following rights and privileges:

- a) Vote in all matters submitted to the membership except that only IAC Members are eligible to vote on matters relating to the OCME Governance Framework
- b) Serve on the Board of Directors and committees

- d) Attend all OCME meetings and events
- e) Receive all OCME communications and publications
- f) Use the OCME's designation and logo as prescribed

2.2. Members holding multiple class memberships shall be entitled to exercise the rights and privileges of each membership class they hold, subject to any limitations specified in these bylaws or by Board resolution.

Section 3. Membership Applications and Approval.

3.1. All applications for membership shall be submitted in writing or electronically on forms provided by OCME.

3.2. The Board of Directors or its designated committee shall review all applications and may approve or reject any application in accordance with established criteria.

3.3. Membership shall become effective upon approval of the application and receipt of required dues.

Section 4. Dues and Fees.

4.1. At its sole discretion, the Board of Directors may establish and/or modify the dues structure for each membership class.

4.2. Members holding multiple class memberships shall be required to pay any established dues for each membership class they hold, unless otherwise determined by the Board of Directors.

Section 5. Termination and Resignation.

5.1. Membership in any class may be terminated for cause by a two-thirds vote of the Board of Directors, following notice and an opportunity to be heard.

5.2. Members may resign from any or all membership classes by providing written notice to OCME.

5.3. Termination or resignation from one membership class shall not automatically affect membership status in other classes, unless otherwise specified in these bylaws or determined by the Board.

5.4. Former members may apply for reinstatement by:

- (a) Submitting a new application
- (b) Paying any outstanding obligations
- (c) Paying current dues
- (d) Receiving Board approval

Section 6. Transfer of Membership. Membership in OCME is not transferable or assignable, except that corporate or entity memberships may be transferred to a successor entity upon written notice and Board approval.

Article 5. - Governance Structure

Section 1. Board of Directors

1.1 Powers and Duties. The Board of Directors shall serve as the governing body of OCME and shall have general charge of its affairs, funds, and property. The Board shall:

- a) Establish and oversee organizational policies
- b) Approve the annual budget and major financial decisions
- c) Hire, evaluate, and if necessary, terminate the Executive Director
- d) Ensure compliance with applicable laws and regulations
- e) Establish and oversee committees as needed
- f) Maintain records of all Board proceedings and financial transactions.

1.2 Composition. The Board shall consist of no fewer than three (3) and no more than five (5) Directors. The exact number may be fixed or changed by resolution of the Board within these limits.

1.3 Qualifications. Directors must be members in good standing of OCME and at least 18 years of age.

1.4 Terms of Office. Directors shall serve staggered two-year terms.

1.5 Board Composition and Elections. Two (2) seats on the Board shall be reserved for representatives designated by **Nexartis LLC** which shall have the right to appoint and remove their designated representative at any time by written notice to the Board. The remaining board seats shall be elected by a majority vote of OCME membership at the virtual annual meeting. Candidates may be nominated by any member in good standing, with nominations to be submitted at least 30 days before the annual meeting.

1.6 Vacancies. Vacancies shall be filled by Board appointment until the next annual meeting, at which time the membership shall elect a Director to complete any remaining term.

1.7 Meetings. The Board shall meet at least quarterly. Special meetings may be called by the written request of one-third of the Directors. A majority of Directors in office shall constitute a quorum.

Section 2. Executive Director.

2.1 Appointment and Terms. The Board shall appoint an Executive Director who shall serve as the chief executive officer of OCME and serve as the Chair of the IAC. The Executive Director shall serve at the pleasure of the Board under such terms and conditions as the Board may establish.

2.2 Powers and Duties. The Executive Director shall:

- a) Implement the policies and directives of the Board
- b) Manage the day-to-day operations of OCME
- c) Maintain proper communications with the IAC and other members
- d) Hire, supervise, and terminate other staff
- e) Prepare and administer the annual budget
- f) Serve as primary spokesperson for OCME
- g) Provide regular reports to the Board on organizational operations
- h) Attend Board meetings in an ex-officio, non-voting capacity

2.3 Evaluation and Compensation. The Board shall conduct an annual performance evaluation of the Executive Director and may set compensation based on this evaluation and comparable market data.

2.4 Vacancy. In the event of a vacancy in the Executive Director position, the Board shall appoint an interim Executive Director and conduct a search for a permanent replacement.

Section 3. Officers.

3.1 Officers and Election. The Board shall elect from among its members a Chair and Secretary, who shall serve one-year terms. Officers may be re-elected but shall not serve more than three consecutive terms in the same office.

3.2 Duties. The Chair shall preside at all Board meetings and serve as the primary liaison between the Board and Executive Director. The Secretary shall ensure proper maintenance of organizational records and shall oversee financial management and reporting.

Section 4. Industry Advisory Council.

4.1. The Board of Directors hereby establishes the Industry Advisory Council (the "IAC") as a distinct membership level within OCME with specified governance rights and responsibilities as set forth in these bylaws.

4.2. The IAC serves as an independent body to provide strategic guidance, expertise, and oversight in furtherance of OCME's mission and objectives. The IAC is also responsible for administering the OCME Governance Framework.

4.3. The Board of Directors, or a committee duly appointed by the Board, shall have the authority to establish, modify, and maintain requirements for membership in the IAC. Such requirements may include, but are not limited to, professional qualifications, industry experience, organizational affiliations, and any other criteria deemed relevant by the Board or its designated committee. The Board or committee shall also have the authority to:

- a) Review and approve applications for IAC membership;
- b) Establish application procedures and documentation requirements;
- c) Set terms and conditions of IAC membership; and
- d) Determine the size and composition of the IAC.

All decisions regarding membership requirements and individual applications shall be made at the sole discretion of the Board or its designated committee and shall be final and binding.

Article 6. - Meeting of Members.

Section 1. Annual Meeting. The annual meeting of the members shall be held at such time and place as determined by the Board of Directors, for the purpose of electing Directors and Officers and for the transaction of such other business as may properly come before the meeting.

Section 2. Special Meetings. Special meetings of the members may be called at any time by the Executive Director, by a majority of the Board of Directors, or upon written request of at least twenty-five percent (25%) of OCME members entitled to vote. Special meetings shall be held at such time and place as determined by the Board of Directors.

Section 3. Notice of Meetings. Written notice stating the place, date, and hour of any meeting of members shall be delivered to each member entitled to vote at such meeting not less than ten (10) nor more than sixty (60) days before the date of such meeting. In the case of a special meeting, the notice shall also state the purpose or purposes for which the meeting is called. Notice may be given personally, by mail, or by electronic transmission to the address of record for each member.

Section 4. Quorum. Ten percent (10%) of the members entitled to vote, represented in person or by proxy, shall constitute a quorum at any meeting of members. The IAC shall be entitled to take any and all member actions in the event a quorum of members is not present after proper notice has been given.

Section 5. Voting. Each member entitled to vote shall have one vote on each matter submitted to a vote of the members. Unless otherwise required by law or these bylaws, all matters shall be decided by a majority of votes cast by the members present in person or by proxy at a meeting at which a quorum is present.

Section 6. Proxies. At any meeting of members, a member entitled to vote may vote by proxy executed in writing by the member or by their duly authorized attorney-in-fact. No proxy shall be valid after eleven (11) months from the date of its execution unless otherwise provided in the proxy.

Article 7. - Governing Law and Jurisdiction

OCME shall be governed by and construed in accordance with the laws of the State of New York, without giving effect to any choice of law provisions. Any legal action or proceeding arising under or relating to these bylaws shall be brought exclusively in the courts of the State of New York, and each member hereby submits to the exclusive jurisdiction of such courts for the purpose of any such action or proceeding.